



TOWN OF REHOBOTH TOWN WARRANT

**Special Town Meeting
and
Annual Rehoboth Water District**

**Monday, September 30, 2024
7:00 PM**

**Francis Farm
Francis Hall Building
27 Francis Farm Road
Rehoboth, MA 02769**

Office of
WATER COMMISSION
340 Anawan Street
Rehoboth, MA 02769



Tel.: (508) 252-3758
Fax: (508) 252-5342

August 19, 2024

Water Commission Town Report
To: the residents of the Town of Rehoboth
Subject: Rehoboth Water Commission

To Rehoboth citizens,

The Water Commission has met during certain times in 2023 and 2024 and offer the following;

- The commission has met with residents to discuss the quality of their water
- The commission has reviewed and offered an opinion on various construction projects.
- The commission has submitted requests to the Board of Selectmen to be more involved with other committees in town. This is an ongoing process with the B.O.S. with a hopeful resolution in the near future.
- The commission is in communication with the Fire Chief to re-do the water supply signs seen around water sources in town. These signs represent a source for the fire department and not sources of drinking water.
- The commission supports a water district that includes the entire town. Currently the district includes only about 40% of the town's land area. We believe that this must be initiated by the Planning Board.

Respectfully submitted,

Joseph Nunes
Chairman, Rehoboth Water Commission

THE COMMONWEALTH OF MASSACHUSETTS
Town of Rehoboth
Bristol, ss

To any of the Constables of the Town of Rehoboth

Greetings:

In the name of the Commonwealth of Massachusetts you are required to notify and warn the inhabitants of the Town aforesaid who are qualified to vote in Elections and Town Affairs, therein, to meet at Francis Farm-Francis Hall Building, on Monday, September 30, 2024 at 7:00 p.m. to act on the following **Special Town Meeting** articles:

ARTICLE 1: FUNDING COLLECTIVE BARGAINING AGREEMENT-DISPATCHERS
SUBMITTED BY: BOARD OF SELECTMEN

To see if the Town will vote to appropriate a sum of \$40,246.69 to fund the first two years of (FY24 and FY25) of a 3-year Collective Bargaining Agreement by and between the Town of Rehoboth and AFSCMA, Local 1701-Dispatchers

Vendor/Dept Name	Purpose	Amount
Dispatchers' Wages	FY24 Retro Payment	\$10,722.23
Dispatchers' Wages	FY25	\$27,024.46
Dispatchers' Expenses	FY25 Uniform Expense	\$2,500.00

 Approved

 Disapproved

Finance Committee Recommends: Approval
Source of Funds: Free Cash \$40,246.69

Comment: The Dispatchers have negotiated a 3-year contract for FY24 thru FY26. This has resulted in a retro payment of \$10,722.23 for the Dispatchers' wages for FY24. The Dispatchers' wages and expenses increased the FY25 budget by \$27,024.46 and \$2,500 respectively. The town voted on Section 26, Exhibit A at the Spring Town Meeting on June 4, 2024.

ARTICLE 2: FUNDING COLLECTIVE BARGAINING AGREEMENT-POLICE
DEPARTMENT PATROLMEN'S ASSOCIATION LOCAL #209 AND SUPERIOR
OFFICERS' ASSOCIATION LOCAL #208
SUBMITTED BY: BOARD OF SELECTMEN

To see if the Town will vote to appropriate a sum of \$155,284.56 to fund the first year FY25 of a 3-year Collective Bargaining Agreement by and between the Town of Rehoboth and the Patrolmen's Association, Local #209 and Superior Officers' Association Local #208.

Dept Name	Purpose	Amount
Police Compensation-Patrolmen's Associate and Superior Officers Association	FY25 Budget Increase	\$141,159.20
Police Chief Salary	FY25 Budget Increase	\$14,125.36

___Approved ___Disapproved **Finance Committee Recommends: At Town Meeting**
Source of Funds: Free Cash

Comment: The Patrolmen's and Superior Officers' Unions have both negotiated a 3-year contract for the period of FY25-FY27. This represents an increase to Section 25, Police Compensation, as voted at the Annual Town Meeting on June 4, 2024. The Police Chief's salary line represents the Acting Chief's adjusted salary and stipend based on the 3-year contract of the Superior Officers' Union Contract. This represents an increase to Section 25, Police Chief Salary, as voted at the Annual Town Meeting on June 4, 2024.

ARTICLE 3: FUNDING FY25 BUDGET WAGE LINE
SUBMITTED BY: BOARD OF SELECTMEN

To see if the Town will vote to appropriate \$714.40 from Free Cash to fund the FY25 Budget wage line for the Office Administrator Position in the Planning Board and Conservation Commission; or take any other action relative thereto.

Dept Name	Account Number	Amount
Conservation Commission	011712-51140	\$357.20
Planning Board	011752-51140	\$357.20

___Approved ___Disapproved **Finance Committee Recommends: Approval**
Source of Funds: Free Cash \$714.40

Comments: Base wages were incorrectly supplied for the FY25 Budget for the Planning Board and Conservation Commission.

ARTICLE 4: AUTHORIZATION TO PAY BILLS OF A PRIOR YEAR
SUBMITTED BY: BOARD OF SELECTMEN

To see if the Town will vote to appropriate \$12,383.06 from Free Cash to pay bills from the previous year as printed below; or take any other action relative thereto.

Vendor/Dept Name	Purpose	Amount
Columbus Energies - Repairs/Service - Facility Maintenance Dept	Late Billing	\$11,065.00
C.N. Wood – Equipment/Parts- Highway Dept	Late Billing	\$1,318.06

___Approved ___Disapproved

Finance Committee Recommends: Approval
Source of Funds: Free Cash \$12,393.06

Comments: Invoices were received from the vendors after the close of FY24. This requires a 9/10th Vote.

ARTICLE 5: BOARD OF HEALTH-TRANSFER STATION OFFSET RECEIPTS
SUBMITTED BY: BOARD OF HEALTH

To see if the Town will vote to amend Article 3 from the 2024 Annual Town Meeting to reauthorize an “offset receipts” account for the Solid Waste Handling Facility and Recycling Area and its operation pursuant to MGL C. 44 S. 53E. Fees collected for the use of the Solid Waste Handling Facility and Recycling Area will be deposited in this fund. The account shall be for the expenses and improvements incurred for the operation, maintenance, monitoring and / or compliance requirements of the Solid Waste Handling Facility and Recycling Area. The Fiscal Year 2025 expenditures shall be decreased from the estimated amount of \$152,400.00 to a new amount of \$147,801.00. All expenditures are to be authorized by the Board of Health, or take any other action relative thereto.

___Approved ___Disapproved

Finance Committee Recommends: Approval

Comments: The operation of the Transfer Station is estimated to cost \$147,801.00 in FY25 and will be funded by pay-as-you-throw fees. This is an amendment from the 2024 Annual Town Meeting in June.

ARTICLE 6: AMENDMENT TO SOURCE OF FUNDING FOR CPC APPROVED
PURCHASE FOR AN ALL-AGE PLAYGROUND FROM JUNE 4, 2024 ANNUAL TOWN
MEETING-ARTICLE 21
SUSBMITTED BY: COMMUNITY PRESERVATION COMMITTEE

To see if the Town will vote to amend Article 21 from the 2024 Annual Town Meeting to correct the source of funds from the recreational funds to undesignated reserve funds.

___Approved ___Disapproved

Finance Committee Recommends: Approval

Comments: June 2024 Annual Town Meeting-Article 21 stated source of funds to be “Open Space and Recreational.” Source of funds should have read “Open Space and Undesignated” funding sources. The funding amounts will remain the same as voted on at the Annual Town Meeting in June.

ARTICLE 7: STREET ACCEPTANCES: HYBRID DRIVE AND CLUBHOUSE WAY
SUBMITTED BY: BOARD OF SELECTMEN

To see if the Town will vote to accept as Town public ways the following roadways:

Hybrid Drive: as laid out by the vote of the Board of Selectmen on August 26, 2024, and as shown on Assessor's Map 45 and 51, a copy of which was filed with the Town Clerk not later than seven days prior to Town Meeting, and to authorize the Board of Selectmen to accept or take by eminent domain deeds or easements to use such public way for all purposes for which public ways are used in the Town of Rehoboth and further to authorize the Selectmen to acquire related drainage, utility and other related easements, as may be necessary.

Clubhouse Way: as laid out by the vote of the Board of Selectmen on August 26, 2024, and as shown on Assessor's Map 51, a copy of which was filed with the Town Clerk not later than seven days prior to Town Meeting, and to authorize the Board of Selectmen to accept or take by eminent domain deeds or easements to use such public way for all purposes for which public ways are used in the Town of Rehoboth and further authorize the Selectmen to acquire related drainage, utility and other related easements, as may be necessary.

Further to authorize the appropriation of \$1500 to pay for title and other expenses that may arise, or take any other action relative thereto.

___Approved ___Disapproved

Board of Selectmen Recommends: Approval
Finance Committee Recommends: Approval
Source of Funds: Free Cash \$1500

ARTICLE 8: GENERAL BYLAWS-ADOPT REVISIONS TO THE GENERAL BYLAWS
SUBMITTED BY: TOWN CLERK

To see if the Town will vote to adopt the following changes to the General Bylaws as set forth in the Final Draft of the Code of the Town of Rehoboth, dated April 2024, on file with the Town Clerk, or what it will do in relation thereto.

General Revisions:

References to the Massachusetts General Laws are standardized to the following format: MGL c. ___, § ___.

The following titles are amended to read "Treasurer-Collector" when referring to the Town Treasurer and Town Collector: Treasurer, Collector, Treasurer/Collector, Tax Collector, and Collector of Taxes.

References to the "Zoning Board" and "Board of Appeals" are amended to read "Zoning Board of Appeals."

References to the "Building Inspector" and "Inspector of Buildings" are amended to read "Building Commissioner."

References to the "Superintendent of Streets" are amended to read "Highway Superintendent."

The term "by-law" is amended to read "bylaw."

The term "Chairman" is amended to read "Chair."

Throughout Chapter 210, Stormwater Management, references to "Superintendent" are amended to read "Highway Superintendent."

Specific Revisions:

Chapter 1, General Provisions.

Article I, General Penalty.

Section 1-2 is amended as indicated:

Any citizen may, and it shall be the duty of the Selectmen, Constables, and Police Officers[,] to, prosecute every violation of any of the ~~foregoing~~ aforementioned bylaws, by complaint before any court of competent jurisdiction in the County of Bristol.

Article II, Approval and Severability of Code Provisions.

Section 1-4 is amended as indicated:

If any section, paragraph, subdivision, clause, phrase or provision of this ~~ordinance~~ bylaw shall be judged invalid or held unconstitutional, the same shall not affect the validity of this ~~ordinance~~ bylaw as a whole or any part or provision thereof other than the part so decided to be invalid or unconstitutional.

Chapter 7, Boards and Officials.

Part 1, Boards.

Section 7-3 is amended as indicated: "Refer to ~~General Laws, Chapter 71, Sections 15 through 17~~ MGL c. 71, §§ 15 through 16I, and amendments."

Part 2, Officials.

Article II, Elected Officials.

Original Ch. A, Art. III, Sec. 1, the third and fourth subparagraphs, regarding the Collector of Taxes and Town Treasurer, respectively, as amended effective 6-19-1972, of the Bylaws are deleted.

Section 7-9B(7) is amended as indicated: "The Selectmen shall act as the licensing authority of the Town, except where otherwise provided, and shall grant licenses and fix fees within the limits provided by the law."

Section 7-9B(13) is amended as indicated:

The Selectmen shall establish the hours, days and weeks of work and the hours, days and weeks of leave without loss of pay, including without limiting the generality of the foregoing, holiday leave, vacation leave and sick leave, for any and all employees other than those appointed by the School Committee; provided that the number of working hours, days or weeks so established shall not

exceed, and the number of hours, days or weeks of leave without loss of pay shall not be less than, the number prescribed by any general or special law applicable to the Town; and further provided that the Annual Town Meeting shall approve by majority vote said action of the Board of Selectmen ~~and further provided that the Annual Town Meeting shall approve by majority vote said action of the Board of Selectmen~~ and further provided that the necessary funds shall be available in a departmental budget.

Section 7-9C(2) and (5) is amended to change "these By-laws" to "this bylaw."

Section 7-9C(6) is amended as indicated:

In addition, the Town Clerk shall ensure, as far as possible, that the entire proceedings of every Town Meeting be ~~videotaped~~ electronically recorded and that the original or a complete copy of said ~~videotape recording~~ be filed with the Town Clerk at the conclusion of each session of said Town Meeting. The ~~videotape recording~~ of each session of each Town Meeting shall become the property of the Town Clerk's office and shall be kept by the Town Clerk's office for a minimum of three years following the adjournment of the subject Town Meeting. Any expenses involved with the ~~videotaping~~ electronic recording of Town Meetings shall be borne by the Town of Rehoboth.

Article III, Appointed Officials, Commissions and Committees.

Original Ch. A, Art. III, Sec. 2D, Duties of the Town Treasurer, as amended June 20, 1988, and June 26, 2007, of the Bylaws is deleted.

Original Ch. A, Art. III, Sec. 2E, Duties of the Tax Collector, of the Bylaws is deleted.

Original Ch. A, Art. III, Sec. 1, last paragraph, regarding the Stormwater Officer, added 3-10-2011, of the Bylaws is deleted.

Section 7-10.

Original Ch. A, Art. IV, Sec. 7A, regarding the appointment date and term of the Town Administrator, added eff. 8-19-1978, as amended 5-19-1989, of the Bylaws is deleted, which originally read: "The Board of Selectmen shall annually in May, and whenever a vacancy shall exist, appoint a Town Administrator for a term of one year beginning on July 1."

The lead-in paragraph is amended as indicated:

Unless otherwise provided by statute, vote of the Town, or these bylaws, all officials, boards, committees and bodies not elected on the official ballot shall be appointed by the Board of Selectmen, ~~effective July 1, each for a term of one year~~ for up to three-year terms or as otherwise specified in state law.

The following positions are added: Board of Health, Electrical Inspector, Fish Warden, Harbormaster, Stormwater Officer, Treasurer-Collector.

The following positions are deleted: Agent to care for cemeteries, Forest Fire Warden, Inspector of Manufactured and Natural Gas Appliances and Installations, Inspector of Plumbing, Inspector of Range Boilers, Inspector of Wiring.

The following positions are revised:

"Inspector of Gas Piping and Gas Appliances in Buildings" is amended to read "Plumbing Inspector/Gas Inspector."

"Two Measurers of Wood and Lumber" is amended to read "Measurer of Wood and Lumber."

"Six Public Weighers" is amended to read "Public Weigher of Livestock."

"Public Nurse" is amended to read "Public Health Nurse."

Section 7-10A(9) is amended to add the following four subsections:

- (a) The Treasurer-Collector shall have all the powers, perform the duties and be subject to the liabilities and penalties now or hereafter conferred and imposed by Massachusetts General Laws on town treasurers and town collectors of taxes. The Treasurer-Collector shall be appointed by the Board of Selectmen for a term not to exceed three years and may be removed by the Board of Selectmen of the Town.
- (b) The Treasurer-Collector shall be properly bonded. The Treasurer-Collector shall have stated hours for the transaction of business and shall give public notice thereof.
- (c) The Treasurer-Collector shall have the custody of all funds belonging to the Town except funds for which other provisions are made by law or by these bylaws. No payment of Town funds may be made except by the Town Treasurer-Collector, and then only on a warrant prepared and signed by the Town Accountant and approved by a majority of the Board of Selectmen. Such warrant shall be sufficient authority to the Town Treasurer-Collector to pay money, and the payment thereof under such warrant shall discharge from him all liability of money so paid. The Town Treasurer-Collector shall make a detailed report of all receipts and expenditures and of all trust funds in his charge, together with a statement of the Town debt, which shall be printed in the Annual Town Report. The Treasurer-Collector shall negotiate all borrowing of money authorized by vote of the Town and shall have custody of the standard weights and measures of the Town.
- (d) The Treasurer-Collector shall bill and collect all tax accounts due the Town, including real and personal property taxes and such other amounts authorized by law or by vote of the Town. All tax bills shall be sent out by the Treasurer-Collector and shall be delivered as soon as practicable after receipt of the tax lists and warrants from the Assessors.

Section 7-10C(5) is amended as indicated:

A Computer Committee shall be appointed annually, effective on July 1, by the Board of Selectmen to include a member of the Board of Assessors, the Town Treasurer-Collector, the Town Clerk, the Town Accountant, the ~~Executive Secretary~~ Town Administrator, the Police Chief and the Fire Chief or their designees.

Section 7-10C(12) is amended as indicated: "A Zoning Board of Appeals under ~~the Sub-Division Control Law~~ Chapter 350, Subdivision of Land Regulations."

Section 7-10C(13) is amended as indicated:

A Zoning Board of Appeals, ~~consisting of five (5) members and three (3) associate members~~ shall be appointed by the Selectmen under provision of MGL c. 40A, and any and all amendments and additions thereto, consisting of five members for a term of five years, one to be appointed each year and up to three associate members appointed annually.

Section 7-10C(14) is added to read: "Committees, councils, commissions, and agencies in §§ 7-11 through 7-19."

Section 7-15C is amended as indicated: "Requirements for membership on the Communications ~~Commission~~ Committee shall include either formal schooling in electronics or on-the-job experience in two-way radio or signaling systems."

Original Ch. A, Art. IV, Sec. 8A, last paragraph, regarding appointment authority, and Sec. 10, last paragraph under "Establishment," regarding appointment authority, of the Bylaws are deleted.

Section 7-16B(1) is amended as indicated:

The Community Preservation Committee shall study the needs, possibilities and resources of the Town regarding community preservation, including the consideration of regional projects for community preservation.

Section 7-16B(2) is amended as indicated:

The Community Preservation Committee shall make recommendations to the Town Meeting for the acquisition, creation and preservation of open space; for the acquisition and preservation of historic resources; for the acquisition, creation and preservation of land for recreational use; for the acquisition, creation, preservation and support of community housing; and for rehabilitation or restoration of such open space, ~~historic resources, land for recreational use~~ and community housing that is acquired or created as provided in this section; provided, however, that funds expended pursuant to MGL c. 44B shall not be used for general maintenance. With respect to community housing, the Community Preservation Committee shall recommend, wherever possible, the reuse of existing buildings or construction of new buildings on previously developed sites.

Section 7-16B(4) is added to read as follows:

The Community Preservation Committee may recommend and the legislative body of the Town may approve appropriations from the fund to acquire land, or real property interests therein, held for railroad purposes to be used by the Town for recreational use as a rail trail as defined in MGL c. 82, § 35A. Notwithstanding MGL c. 44B, § 12(a), land, or real property interests therein, acquired pursuant to this subsection shall remain subject to any property interest, including restrictions or reversionary interests, required to be held by the grantor or the United States pursuant to the federal National Trails System Act of 1968, as amended. Notwithstanding the definition of real property interest in MGL c. 44B, § 2, land, or real property interests therein, acquired pursuant to this subsection shall be considered a real property interest for purposes of this chapter, and a conservation restriction that meets the requirements of MGL c. 184, § 31 to 33, inclusive, shall be required.

Section 7-17.

Subsection A is amended as indicated: "There is hereby established an Agricultural Commission, ~~authorizing~~ The Board of Selectmen is authorized to appoint an Agricultural Commission to represent the Rehoboth farming community."

Subsection B is added to read as follows:

The Board of Health shall provide copies of and the Agricultural Commission shall have 45 days to review proposed regulations on the following: "farmers' markets" as defined in department regulations; "farms" as defined in MGL c. 128, § 1A; the noncommercial keeping of poultry, livestock or bees; or the noncommercial production of fruit, vegetables or horticultural plants.

Section 7-18C(3) is amended as indicated:

If no action is taken by the Board of Selectmen after 30 days, the Council may act upon its recommendation after holding a public hearing, including notice to all parties concerned, and in conformity with ~~MGL Chapter 39 Section 23B~~ MGL c. 30A, §§ 18 through 25.

Section 7-22 is added to read as follows:

Should any of the commissions, boards, or committees who have appointment authority under this bylaw be no longer in existence for whatever reason, the appointment authority for that commission, board, or committee shall become the responsibility of the Board of Selectmen.

Chapter 22, Funds, Fees and Contracts.

Article II, Charles D. Richardson Memorial Camp Scholarship Fund.

Section 22-5 is amended as indicated:

~~That~~ ~~The~~ The Charles D. Richardson Memorial Camp Scholarship Fund is hereby established; ~~that~~ the members of the Conservation Commission shall be ex officio trustees of said fund, with authority to invest and reinvest the principal or income. The income shall be used for the purpose of paying the expenses of the worthy youth or youths of the Town in connection with their attendance at a 4-H or other camp which includes within its purposes the promotion of an interest in conservation of natural resources[;], and ~~that~~ the Town Treasurer-Collector shall be treasurer-custodian of the fund; ~~that~~ he shall be authorized to accept original and subsequent gifts which will become part of the unexpended principal of said funds; disbursements shall be made from income when income amounts are sufficient to permit such expenditures as authorized by the trustees.

Chapter 60, Personnel Bylaw.

Section 60-1A(3) is amended as indicated:

Fair treatment of all applicants and employees shall be guaranteed in all aspects of the personnel system, which shall be administered without regard to ~~race, color, religion, sex, national origin, political affiliation, age, handicap,~~ any characteristics protected by law or other nonmerit factors and with proper regard for privacy and constitutional rights.

Section 60-3A(1)(e) is amended as indicated:

Ensure that the Town acts affirmatively in providing maximum opportunities to all persons ~~regardless of sex, color, creed, race or national origin~~ without regard to any characteristics protected by law or other nonmerit factors for both entry-level positions and promotional positions and provides equal treatment in all aspects of personnel management.

Chapter 76, Town Meetings.

Article I, Calling of Town Meetings.

Section 76-1B is amended as indicated: "The number of copies ~~to~~ shall be at the discretion of the Board of Selectmen."

Article II, Procedure at Town Meetings.

Section 76-9 is amended as indicated:

The conduct of all Town Meetings not prescribed by law or by ~~these By-Laws~~ this bylaw shall be determined by the rules and practices contained in Town Meeting Time: A Handbook of Parliamentary Law Practice, second edition by Johnson, Trustman, and Wadsworth, revised and amended in 1984 by Copeland, Harrington, Howard, Kirkpatrick and Nichols, current edition, as far as applicable and not inconsistent with the bylaws of the Town.

Chapter 113, Buildings and Building Construction.

Article I, Stretch Energy Code.

Section 113-4 is amended as indicated:

The Stretch Energy Code, as codified by the Board of Building Regulations and Standards as 780 CMR ~~Appendix~~ 115.AA, including any future editions, amendments or modifications, is herein incorporated by reference into the Town of Rehoboth General Bylaws, Chapter 113, Article I. The Stretch Energy Code is enforceable by the ~~Inspector of Buildings or~~ Building Commissioner and effective as of January 1, 2020.

Chapter 118, Burial Grounds, Care of.

Section 118-4 is amended as indicated:

Within such buffer zone, excavating a ground depth of more than 24 inches and construction of any kind within the designated buffer zone is prohibited without prior authorization of the Cemetery Commission.

Chapter 125, Dog Control.

Section 125-2C is amended as indicated:

Penalties may be imposed as prescribed in MGL c. 140, § 157, up to and including euthanasia and/or issuing a fine to the owner of the dog or dog(s) in the amount of \$100 for the first offense, \$200 for the second offense, ~~and \$300 for subsequent offenses~~ the third offense; for a fourth or subsequent offense, the fine shall be \$500 and the Town may order the animal spayed or neutered. Each day of said failure shall constitute a separate offense. No banishment orders may ~~issue~~ be issued.

Section 125-4A is amended as indicated:

~~Whoever is the owner or keeper of a dog or cat six months of age or older shall cause such dog or cat to be vaccinated against rabies by a licensed veterinarian using a vaccine approved by the Massachusetts Department of Public Health. Such owner or keeper shall procure a veterinarian's certification that such dog or cat~~ Section 21A. Whoever is the owner or keeper of a dog, ~~or~~ cat or ferret six months of age or older shall cause such dog, ~~or~~ cat or ferret to be vaccinated against rabies by a licensed veterinarian using a vaccine approved by the Massachusetts Department of Public Health. Such owner or keeper shall procure a veterinarian's certification that such dog, ~~or~~ cat or ferret has been vaccinated and setting forth the date of such vaccination and the duration of immunity, or a notarized letter from a veterinarian that a certification was issued, or a metal rabies tag bearing an expiration date indicating that such certification is still in effect.

Chapter 131, Excavations.

Article II, Utility Installations.

Section 131-5 is amended to change "division of professional licensure" to "Division of Occupational Licensure," so that the second sentence of this section reads as follows:

The granting of such permit shall require all such activities to conform to MGL c. 82A, MGL c. 82, §§ 40 through 40D, inclusive, and regulations promulgated by the Office of Public Safety and Inspections of the Division of Occupational Licensure relative to MGL c. 146.

Chapter 137, Farming (Right to Farm Bylaw).

Section 137-2, definition of "farming or agriculture (or their derivatives)," Subsection A, is amended as indicated: "Includes, but shall not be limited to, the following:"

Chapter 149, Gravel Operations.

Section 149-10B is amended as indicated:

Gravel operations, as defined in Article III hereof, to fulfill requirements of the ~~Subdivision Control Law~~ Subdivision of Land Regulations of Rehoboth in an approved subdivision in accordance with standards approved by the subdivision approving authority of the Town.

Section 149-10D is amended as indicated:

Gravel operations, as defined in Article III hereof, for ~~the purposes of~~ equestrian, landscaping, horticulture or agriculture purposes[,]; provided, however, that no such operation shall involve more than 1,000 cubic yards of soil, loam, peat, sand, or gravel per 60,000 square feet of area.

Section 149-11A(4) is amended as indicated: "Each day in which a violation takes place or exists shall constitute a separate offense under this bylaw; ~~and.~~"

Chapter 156, Health and Sanitation.

Section 156-4 is amended as indicated in the second sentence thereof: "Violations of this ~~By Law~~ section shall be deemed a misdemeanor and punishable as such."

Section 156-7 is amended as indicated:

The requirements/regulations for septic tank capacities, as outlined in the State Environmental Code, Title 5: ~~Minimum requirements for the subsurface disposal of sanitary sewage~~ Standard Requirements for the Siting, Construction, Inspection, Upgrade and Expansion of On-Site Sewage Treatment and Disposal Systems and for the Transport and Disposal of Septage, 15.006: ~~Septic Tanks (4) Capacities~~ Facilities with a Design Flow of 10,000 gpd or Greater but Less than 15,000 gpd, Subsection (1), be changed for the Town to "but in no case less than 1,500 gallons."

Chapter 175, Marijuana.

Article II, Licensing.

Section 175-3 is amended as indicated: "No person shall carry on the business, cultivate, process, package, deliver, obtain, manufacture, brand, sell or otherwise transfer, or test marijuana or marijuana products ..."

Section 175-10A is amended as indicated:

The licensing authority may deny, revoke or suspend any license or permit, including renewals and transfers, of any party or agent thereof whose name appears on ~~said~~ the list furnished to the licensing authority from the Town Treasurer-Collector of individuals delinquent on their taxes and/or other municipal charges.

Section 175-11 is amended as indicated: "This bylaw is adopted under the authority granted by the Home Rule Amendment (Art. 89 of the Amendments to the Massachusetts Constitution); MGL c. 94G, § 3; 935 CMR 500.000."

Chapter 188, Permits and Licenses.

Article I, Denial or Revocation for Failure to Pay Taxes or Fees.

Section 188-1 is amended as indicated:

The Treasurer-Collector or other municipal official responsible for records of all municipal taxes, assessments, betterments, and other municipal charges, hereinafter referred to as the "Treasurer-Collector," shall annually, and may periodically, furnish to each department, board, commission, department, official, or division, hereinafter referred to as the "licensing authority," that issues, grants or provides, licenses, permits, approvals or endorsements, including, but not limited to, renewals and transfers, a list of any person, corporation, or business enterprise, hereinafter referred to as the "party," that has neglected or refused to pay any local taxes, fees, assessments, betterments, or other municipal charges, including amounts assessed under MGL c. 40, § 21D, ~~for not less than a twelve (12) month period~~, and that such party has not filed in good faith a pending application of abatement of such tax or a pending petition before the Appellate Tax Board.

Chapter 200, Scenic Roads.

Section 200-2B is amended as indicated:

The Board shall also send copies of that notice to the Selectmen, Conservation Commission, Historical Commission, Town Engineer, Highway ~~Surveyor~~ Superintendent, Tree Warden, Department of Public Works, and owners as of the preceding January 1 of property located in whole or in part within 500 feet of the proposed action.

Section 200-4F is amended as indicated:

Relationship of road design to the standards of ~~the Planning Board's subdivision regulations~~ Chapter 350, Subdivision of Land Regulations, and of the Massachusetts ~~Department of Public Works Highway Division~~;

Section 200-5A is amended as indicated: "A report of denial shall include an indication ~~and~~ of what modifications, if any, would lead to consent."

Original Ch. B, Art. I, Sec. 36, Subsection (4), definitions of "road," "cutting or removal of trees," and "tearing down or destruction of stone walls," of the Bylaws, are deleted.

Chapter 210, Stormwater Management.

Section 210-4, definition of "estimated habitat of rare wildlife and certified vernal pools," is amended to change 304 CMR 11.00 to 302 CMR 16.00, so that this definition reads as follows:

Habitats delineated for state-protected rare wildlife and certified vernal pools for use with the Wetlands Protection Act Regulations (310 CMR 10.00) and the Forest Cutting Practices Act Regulations (302 CMR 16.00).

Section 210-4, definition of "pollutant," Subsection L, is amended as indicated: "~~And a~~ Noxious or offensive matter of any kind."

Section 210-6 is amended as indicated: "The Rehoboth Highway Superintendent (~~Superintendent~~) or Stormwater Officer shall administer and implement Article II of this bylaw."

Section 210-9B(6) is amended as indicated: "Uncontaminated groundwater infiltration as defined in 40 CFR 35.2005(~~b~~)(20), or uncontaminated pumped groundwater;"

Section 210-13 is amended to add a lead-in paragraph to read "The following activities shall be exempt from the permit requirements of this article:"

Chapter 215, Streets, Sidewalks and Public Ways.

Section 215-4 is amended as indicated:

No person shall establish or maintain any shade or awning over any part of a sidewalk unless the same be securely and safely supported and unless the lowest part thereof be not less than ~~seven~~ nine feet above said sidewalk.

Section 215-7 is amended, in part, as indicated: "... or any noxious material or refuse or other liquid or solid matter or substances."

Chapter 235, Vehicles and Traffic.

Article II, Handicapped Parking.

Section 235-3A is amended, in part, as indicated: "... or for any other place where the public has a right of access as invitees or licensees, ~~to~~ shall reserve parking spaces in said off-street parking area ..."

Chapter 240, Vendors.
Article II, Junk Dealers.

Section 240-13 is amended as indicated:

Whoever, not being licensed as herein provided, keeps such a shop or storage place, or is such a dealer and, being licensed, violates any of the provisions of this article or any regulations or restrictions contained in his license shall forfeit ~~not more than twenty dollars~~ \$20 for each offense.

Article III, Ice Cream Trucks.

Section 240-16 is amended as indicated: "Permits issued hereunder shall conform to regulations, rules, forms and policies of the Massachusetts ~~Department of Public Safety~~ Office of Public Safety and Inspections."

Chapter 253, Wetlands Protection.

In § 253-2B, the Filing Fee Schedule is amended as indicated in the double-asterisk note that follows the schedule: "Please note that the filing fee for a notice of intent which has been filed as a result of enforcement action is double the fee shown in this table."

 Approved **Disapproved** **Board of Selectmen Recommends: At Town Meeting**

Comment: As mentioned in the previous article comments, the Board of Selectmen approved the Codification of Rehoboth's Town Bylaws project. Part of the project included a thorough legal review of Rehoboth's bylaws to assure all references to laws and other standards are updated to current information. Such updating is needed because some Commonwealth statutes and regulations have been revised, dropped, or added. A range of corrections involve typos, wording duplications, grammatical inconsistencies, and other inevitable errors occurring over the years. Additionally, over the years, various town offices have changed their names and some officials have new titles. A few changes are presented for action. Finally, all changes have been researched and checked by Rehoboth town officials. Representatives of each affected town committee, commission, and board have given their detailed review and indicated approval. ***Important to Note: None of the meanings or requirements of the bylaws are changed.*** At the instruction of the Board of Selectmen, the project specifically does not encompass substantive content changes. If and when content changes are desired, they will be presented in a future Town Meeting. A red-lined version of the current changes appears on the Town website for your review in detail @ www.RehobothMA.gov under "News & Announcements". A printed version is available for review in the Town Clerks office.

ARTICLE 9: REHOBOTH ZONING BYLAW AMENDMENT TO ADOPT REVISIONS
TO THE ZONING BYLAWS
SUBMITTED BY: TOWN CLERK

To see if the Town will vote to adopt the following changes to the Zoning Bylaw as set forth in the Final Draft of the Code of the Town of Rehoboth dated April 2024, on file with the Town Clerk, or what it will do in relation thereto.

General Revisions:

References to the Massachusetts General Laws are standardized to the following format: MGL c. __, § ____.

References to the "Zoning Board" and "Board of Appeals" are amended to read "Zoning Board of Appeals."

References to the "Building Inspector," "Inspector of Buildings," and "building official" are amended to read "Building Commissioner."

References to "licensed" engineers are amended to read "registered."

The term "by-law" is amended to read "bylaw."

The term "ordinance" is amended to read "bylaw," and the term "this ordinance" is amended to read "this bylaw."

References to the "Zoning Bylaws" are amended to read "Zoning Bylaw."

References to the "Residential/Agricultural" District are amended to read "Residence/Agricultural."

The following terms are amended to read "large-scale ground-mounted solar photovoltaic installation": "ground-mounted large scale solar photovoltaic installation," "large scale solar power generation installation," "solar photovoltaic installation," "large-scale ground-mounted photovoltaic installation," and "large-scale solar photovoltaic installation."

Specific Revisions:

Section 270-2.0.

The definition of "camper" is amended as indicated: "A portable dwelling, eligible to be registered and insured for highway use, designed to be used for travel, recreational and vacation uses but not for permanent residence."

The defined term "child care facility" is updated to "child-care center," and the definition is amended as indicated:

~~A Day Care Center, a Family Day Care Home or a School Age Child Care Program. A facility operated on a regular basis, whether known as a "child nursery," "nursery school," "kindergarten," "child play school," "progressive school," "child development center," or "preschool," or known under any other name, which receives children not of common parentage under seven years of age, or under 16 years of age if those children have special needs, for nonresidential custody and care during part or all of the day separate from their parents. Child-care center shall not include any part of a public school system; any part of a private, organized educational system, unless the services of that system are primarily limited to kindergarten, nursery or related preschool services; a Sunday school conducted by a religious institution; a facility operated by a religious organization in which children are cared for during short periods of time while persons responsible for the children are attending religious services; a family child-care home; an informal cooperative arrangement among neighbors or relatives; or the occasional care of children with or without compensation.~~

The definition of "day care center," added 4-18-1995, is deleted.

The defined term "district" is amended to read "Flood Plain District," and the definition is amended as indicated: ~~"Floodplain district~~ The overlay district as provided in § 270-4.4 of this bylaw."

The defined term "family day care home" is updated to "family child care home," and the definition is amended as indicated:

~~"Family day care home" as such term is defined M.G.L. Chapter 28A, section 9, as the same may be amended from time to time~~ A private residence which, on a regular basis, receives for temporary custody and care during part or all of the day children under seven years of age, or children under 16 years of age if those children have special needs, and receives for temporary custody and care for a limited number of hours children of school age under regulations adopted by the Board. The total number of children under 16 in a family child-care home shall not exceed six, including participating children living in the residence. Family child-care home shall not mean a private residence used for an informal cooperative arrangement among neighbors or relatives, or the occasional care of children with or without compensation.

The definition of "flood hazard, area of special" is amended as indicated:

~~Is - The~~ The land in the floodplain within the municipal boundaries of the Town of Rehoboth subject to a 1% or greater chance of flooding in any given year. The area is designated as Zone A, A1, A2, A3, A4, A6, or A7 on the FIRM dated September 1, 1977 July 7, 2009.

The defined term "kennel: kennel" is amended to read "kennel."

The definition of "medical marijuana facilities" is amended as indicated:

~~A not for profit entity, as defined by Massachusetts law only, duly registered and/or licensed by the Massachusetts Department of Public Health, that acquires, cultivates, possesses, processes (including development of related products such as food, tinctures, aerosols, oils or ointments), transfers, transports, sells, distributes, dispenses, or administers marijuana, products containing marijuana, related supplies or educational materials to qualifying patients or their personal caregivers~~ The premises approved under a medical use marijuana license.

The definitions of "microbrewery" and "microdistillery" are amended to change "Alcoholic Beverage Commission" to read "Alcoholic Beverages Control Commission."

The defined term "school age child care program" is updated to "school-aged child care program," and the definition is amended as indicated:

A "school-aged child care program" as defined in ~~M.G.L., Chapter 28A, section 9~~ MGL c. 15D, § 1a, as the same may be amended from time to time.

The definition of "sign" is amended as indicated:

The area of a sign shall be considered to include all lettering, wording, and accompanying designs and symbols, together with the background on which they are displayed, any frame around the sign and any "cutouts" or extensions, except as otherwise provided in § 270-6.5 of this bylaw, but shall not include any supporting structure or bracing.

The defined term "special hazard area" is amended to read "special flood hazard area."

Section 270-4.1A(16) is amended as indicated: "~~Large Wind Electrical Generation Facility~~ Large wind energy facility with special permit approval as described in § 270-4.9."

Section 270-4.1A(17) is amended as indicated: "~~Utility Scale Wind Electrical Generation Facility~~ Utility-scale wind energy facility with special permit approval as described in § 270-4.9."

Section 270-4.4C(1)(a) is amended, in part, as indicated:

... the ~~Minimum Requirements for the Subsurface Disposal of Sanitary Sewage~~ Standard Requirements for the Siting, Construction, Inspection, Upgrade and Expansion of On-Site Sewage Treatment and Disposal Systems and for the Transport and Disposal of Septage, DEP (currently 310 CMR 15.00, Title 5)

Section 270-4.5A(1) is amended as indicated: "The purpose of the Groundwater Protection District is to:"

Section 270-4.5B, definition of "nonconforming use," is amended as indicated: "~~Any use that does not conform to the intent of this bylaw whether specified or inferred herein~~ See § 270-2.0."

Section 270-4.5E(3)(b)[1] is amended to change "310 Code of Massachusetts Regulations CMR 19.00" to "310 CMR 19.00," so that this subsection reads as follows:

Solid waste disposal facilities, including, without limitation, landfill, junkyards, and salvage yards, that require a site assignment from the Board of Health under MGL c. 111, § 150A, (the Landfill Assignment Law), and regulations adopted by the Department of Environmental Quality Engineering, 310 CMR 19.00;

Section 270-4.5E(3)(b)[8] is amended as indicated:

Disposal of liquid or leachable wastes, except by individual on-site domestic sewage disposal systems serving one- or two-family residences or serving business, industrial, or institutional uses discharging not more than 1,000 gallons per day per 60,000 square feet of lot area in compliance with Title ~~V~~ 5 of the State Environmental Code, 310 CMR 15.00;

Section 270-4.5F(1) is amended as indicated: "Such special permit shall only be granted if the Planning Board determines that the intent of this bylaw ~~as~~ and each of its specific criteria are fully met."

Section 270-4.5F(8)(a) is amended to change "314 CMR 6.00" to "314 CMR 5.11."

Section 270-4.5G(1) is amended as indicated: "Laboratory analysis ~~at the applicant's~~ shall be at the expense of the applicant."

Section 270-4.10C, definition of "protected structure," is amended, in part, as indicated: "Any occupied residence, commercial, business, school, religious institution or any other public building located within one mile of the surface location of a compressor station ..."

Section 270-4.11H(2) is amended as indicated:

Prior to construction of the facility, the operator shall provide to the Town's first responders, including the Fire Department, Police Department, ambulance service and Zoning Enforcement Officer, a copy of its Preparedness, Prevention Contingency Plan, which shall address methods to handle the following:

Section 270-6.1B is amended, in part, as indicated: "... first notice of the public hearing on this bylaw or any amendment thereto to provide for its use for a substantially different purpose ..."

Section 270-6.5C(2) is amended as indicated: "The ~~Town~~ Zoning Enforcement Officer shall have the right to order the repair or removal of any sign which is defective, damaged or substantially deteriorated."

Section 270-6.5G, definition of "animated sign," is amended as indicated:

A sign which has any visible moving part, flashing or oscillating lights, visible mechanical movement of any description, or other apparent visible movement achieved by any means that move, change, flash, or oscillate; provided, however, that electronic message ~~centers~~ signs which are otherwise regulated under this sign section shall not be considered to be animated signs.

Section 270-6.6J is amended as indicated: "Such permit shall be for a period of six months and may be renewed only for ~~two consecutive~~ one six-month ~~intervals~~ interval, the total time period not to exceed ~~48~~ 12 consecutive months."

Section 270-6.7D(1) is amended as indicated: "All site plans shall be prepared by a registered architect, landscape architect, or professional engineer unless this requirement is waived by the Planning Board because of unusually simple circumstances."

Section 270-6.7E(1) is amended as indicated:

The Planning Board shall refer copies of the application within five days to the Conservation Commission, Board of Health, Building Commissioner, Highway Superintendent, Police Chief, ~~and~~ Fire Chief and Board of Selectmen, who shall review the application and submit their recommendations and comments to the Planning Board.

Section 270-6.8B is amended as indicated:

The same formula shall apply to issuance of ~~occupancy permits~~ certificates of occupancy for mobile homes if, and only if, mobile homes are specifically permitted by another section of the Zoning Bylaw.

Section 270-6.9 is amended as indicated:

Additionally, ~~that said~~ the applicant for a building permit for such installation shall be required to furnish all documentation as the Building Commissioner may require to determine that such

installation will not create a health hazard, nuisance or discomfort to the occupancy of neighboring properties, and that ~~the use of~~ such boiler used in compliance shall be allowed to burn all year long with no special permit allowed.

In § 270-7.1C, the reference to Article 1, Section 113.1, of the Massachusetts State Building Code is amended to "780 CMR 105," so that this subsection reads as follows:

Any person who undertakes or authorizes or causes work to be done without first applying for and obtaining the appropriate building permit as set forth in the Massachusetts State Building Code, 780 CMR 105, shall be subject to a fine in the amount of three times the then-current fee charged for said permit as established by the Board of Selectmen, not to exceed \$300 per offense; each day of violation shall be a separate offense.

Section 270-7.3 is amended to add a lead-in paragraph to read "The powers of the Zoning Board of Appeals shall be as follows:"

Section 270-8.1 is amended as indicated: "The special permit granting authority shall be the ZBA for the uses described in this article."

Section 270-11.2, definition of "Building Commissioner," is amended as indicated: "The inspector of buildings ~~or the zoning enforcement officer charged with the enforcement of the zoning ordinance~~ this Zoning Bylaw."

Section 270-11.2, definition of "building permit," Subsection A, definition of "special use permit," is amended as indicated:

A permit provided by the special permit granting authority for installation of wind energy facilities or MET towers by business and industrial entities and for large ~~wind~~ or utility-scale wind energy facilities.

Sections 270-11.2, definition of "building permit," Subsection A, defined term "special use permit," and 270-12.4A are amended to change "special use permit" to "special permit."

Section 270-11.3A, the table listing technology types and the permit needed for each, is amended to change "Large Wind-Utility scale or on-site wind" to "Large, utility-scale or on-site wind energy facility" and to change "Building Integrated Wind Energy System" to "Building integrated wind energy facility."

Section 270-11.4A is amended as indicated:

The construction of a micro wind or small wind energy facility shall be allowed in any zoning district subject to the issuance of a special permit and provided that the use complies with all requirements set forth in §§ 270-11.3 and 270-11.4."

Section 270-12.2.

In the definitions of "as-of-right siting" and "site plan review," the term "local zoning ordinances or bylaws" is amended to read "this Zoning Bylaw."

The definition of "Building Commissioner" is amended as indicated: "The inspector of buildings or the zoning enforcement officer charged with the enforcement of ~~the zoning ordinance~~ this Zoning Bylaw."

___Approved ___Disapproved

Board of Selectmen Recommend: At Town Meeting
Planning Board Recommend: At Town Meeting

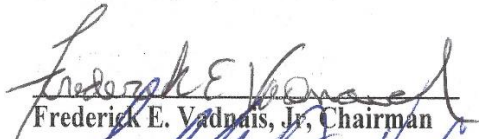
Comment: As mentioned in the previous article comments, the Board of Selectmen approved the Codification of Rehoboth's Town Bylaws project. Part of the project included a thorough legal review of Rehoboth's bylaws to assure all references to laws and other standards are updated to current information. Such updating is needed because some Commonwealth statutes and regulations have been revised, dropped, or added. A range of corrections involve typos, wording duplications, grammatical inconsistencies, and other inevitable errors occurring over the years. Additionally, over the years, various town offices have changed their names and some officials have new titles. A few changes are presented for action. Finally, all changes have been researched and checked by Rehoboth town officials. Representatives of each affected town committee, commission, and board have given their detailed review and indicated approval. ***Important to Note: None of the meanings or requirements of the bylaws are changed.*** At the instruction of the Board of Selectmen, the project specifically does not encompass substantive content changes. If and when content changes are desired, they will be presented in a future Town Meeting. A red-lined version of the current changes appears on the Town website for your review in detail @ www.RehobothMA.gov under "News & Announcements". A printed version is available for review in the Town Clerks office.

ARTICLE 10: TRANSACT OTHER BUSINESS AS MAY LEGALLY COME BEFORE SAID MEETING

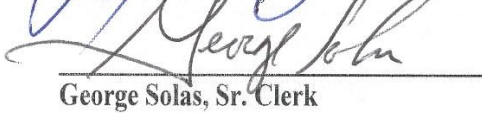
You are hereby directed to serve this Warrant by posting attested copies thereof in the Office of the Town Clerk and in not less than four other public places in each of the four precincts of the Town fourteen (14) days at least before the day fixed for the meeting.

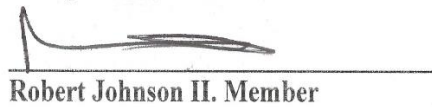
Hereof and fail not and make due return of this Warrant with your doings thereon to the Town Clerk at the time and place of holding said meeting.

Given under our hands this 26 day of August in the year two thousand twenty-four.


Frederick E. Vadnais, Jr., Chairman


Leonard Mills, Jr., Vice Chairman


George Solas, Sr. Clerk


Robert Johnson II, Member


David J Pereira II, Member

BOARD OF SELECTMEN

**Town of Rehoboth
Rehoboth, Massachusetts 02769**

**Important
Official Notice of:
September 30, 2024 Special Town Meeting**

**PRESORTED STANDARD
U.S. Postage Paid
Attleboro, MA
Permit No. PI210**

**BOX HOLDER
Rehoboth, Massachusetts 02769**

**Please bring this Warrant with you to the
Special Town Meeting**

***Francis Farm
Francis Hall Building
27 Francis Farm Road
Rehoboth, MA 02769***

Monday, September 30, 2024 at 7 PM